Judge Richard Oberholzer

DEPT C15

Department C15 hears Law and Motion matters on Mondays at 1:45 pm

Court Reporters: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- **Civil Court Reporter Pooling; and**
- **For additional information, please see the court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.**

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 10:00 am in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the

prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc*. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department C15 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") also available at https://www.occourts.org/media-relations/aci.html will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so by providing notice of in-person appearance to the court and all other parties five (5) days in advance of the hearing. (see Appearance Procedures, section 3(c)1.)

PUBLIC ACCESS: In those instances where proceedings will be conducted only by remote video and/or audio, access will be provided to interested parties by contacting the courtroom clerk, preferably 24 hours in advance. No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS

Date: May 18, 2026

#	Case Name	Tentative
1	**Trombetta vs. Patterson** **2024-01406889**	**1. Demurrer to Amended Complaint** **2. Case Management Conference** Defendants Bradley A. Patterson, Harry T. O'Hagin, LGI LLP, and Martin P. Cohn, individually and dba Cohn, Stewart & Associates' demur to Plaintiff's Second Amended Complaint. *Second cause of action for Unlawful, Unfair, and Fraudulent Business Practices (Business and Professions Code section §17200 et seq.)* The Unfair Competition Law (UCL), Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co. (1999) 20 Cal.4th 163, 180.) "By proscribing 'any unlawful' business practice, 'section 17200 'borrows' violations of other laws and treats them as unlawful practices' that the unfair competition law makes independently actionable." (Ibid. [citations omitted].) Virtually any law or regulation can serve as predicate for a section 17200 "unlawful" violation. (Paulus v. Bob Lynch Ford, Inc. (2006) 139 Cal.App.4th 659, 681 [citation omitted.] Plaintiff "seeks recovery on his own behalf as to the First Cause of Action for Malicious Prosecution and on behalf of others similarly injured by Defendants Unlawful Business. Practices under Business & Professions Code §17200 in the Second Cause of Action." (SAC ¶ 2.)

		Plaintiff alleges Defendants implemented fraudulent tax avoidance plans, intimidated and threatened others not to disclose the information or make it known to the public and to the authorities, and made false and fraudulent representations to Plaintiff. (SAC ¶¶ 143, 145.) Defendants demur on the grounds Plaintiff lacks standing to bring the claim based on tax fraud since he personally suffered no damages. In addition to the tax fraud allegations, however, Plaintiff also alleges Defendants used court proceedings with the intent to "threaten Plaintiff and others with legal and monetary harm to discourage and prevent them from bringing the extent of Defendants' unlawful activities to light or to disclose them." (SAC ¶ 149.) Plaintiff alleges as a result he and others "have sustained an economic loss for which they are entitled to restitution as well as their attorney fees." (SAC ¶ 150.) On reply, Defendants contend Plaintiff cannot assert a malicious prosecution claim as a violation of section 17200 as "the sole means of addressing a claim for malicious prosecution is through a cause of action for that claim." (Reply at 5:3-5.) "Knowingly filing or pursuing unmeritorious legal actions that are not factually or legally tenable, for the purpose of earning income, qualifies as an unfair business practice." (Golden State Seafood, Inc. v. Schloss (2020) 53 Cal.App.5th 21, 40.) The case on which Defendants rely, Rubin v. Green (1993) 4 Cal.4th 1187, is inapposite. The court in Rubin addressed the litigation privilege under section 47, subdivision (b) and not a claim for malicious prosecution. The court found the plaintiff's claim in fact "lack[ed] an essential attribute of a malicious prosecution action" and as the only exception to section 47(b) tort suits has been for malicious prosecution actions, the plaintiff could not avoid the application of section 47(b) by bringing his claim under the unfair competition statute. (Id. at pp. 1193-1194.) Finally, Defendants contend the claim is time-barred. Plaintiff filed his original complaint on 10/22/18. (ROA 3.)

		"[A]bsent special circumstances, the last element accrual rule is fully applicable in UCL cases." (Ivanoff v. Bank of America, N.A. (2017) 9 Cal.App.5th 719, 732-733 [citation omitted].) Plaintiff alleges in 2013, Defendants filed an amended cross-complaint in an underlying action to include Plaintiff as a cross-defendant to intimidate Plaintiff and "dissuade any cooperation with taxing authorities that would lead to uncovering additional evidence of their racketeering activities and to prevent and/or continue to delay detection of and prosecution for the pattern of criminal conduct described herein." (SAC ¶¶ 20, 130.) The cross-complaint was then dismissed with prejudice as to Plaintiff on 10/23/17. (SAC ¶ 21.) Plaintiff contends the dismissal in 2017 is the "last element" from which the statute of limitations runs. A cause of action for malicious prosecution "does not accrue until such favorable termination has occurred." (Ray v. First Federal Bank (1998) 61 Cal.App.4th 315, 318 [citation omitted].) Thus, to the extent Plaintiff's section 17200 claim is also based on allegations of malicious prosecution, that cause of action would not have accrued until the cross-complaint was dismissed as to Plaintiff (as a cross-defendant) in 2017. Finally, Defendants contend no allegations were made against Defendant Martin P. Cohn, individually and dba Cohn, Stewart & Associates. Plaintiff alleges Cohn was an attorney and a member of Cohn, Stewart & Associates (CSA). (SAC ¶ 9.) Plaintiff further alleges defendant CSA "was, at all relevant times, a law firm, which included Defendant COHN on whose behalf COHN acted as an agent in connection with the matters herein alleged." (SAC ¶ 10.) Plaintiff alleges Cohn, CSA, along with others, caused to be filed the cross-complaint, which was later amended to add Plaintiff, to "gain revenge, obtain an improper litigation advantage, create leverage to force settlement, and to intimidate TROMBETTA and other Cross-Defendants." (SAC ¶¶ 18, 23, 26.) As such, Plaintiff has alleged relevant facts as to Cohn as well as Cohn, Steward, & Associates.

		Tentative Ruling: The Court OVERRULES Defendants' demurrer as to the second cause of action. The Court ORDERS Defendants Bradley A. Patterson, Harry T. O'Hagin, LGI LLP, and Martin P. Cohn, individually and dba Cohn, Stewart & Associates to file an answer within 20 days.
2	**Hakopian vs. Hakopian** **2025-01454652**	**1. Motion to Strike Portions Of Complaint** **2. Demurrer to Amended Complaint** **1. Motion to Strike** Defendant moves to strike the 2nd, 3rd, 5th, 10th, 11th, and 12th causes of action from the First Amended Complaint ("FAC") on the grounds that the FAC was not drawn in conformity with the law. A trial court has discretion to strike out "any irrelevant, false, or improper matter inserted in any pleading" or "all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Civ. Proc. Code § 436, subd. (b).) "It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all. The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend." (Community. Water Coalition v. Santa Cruz Cty. Local Agency Formation Commission (2011) 200 Cal.App.4th 1317, 1329 [cleaned up] [striking amendment adding new facts and a new cause of action even though it was based upon the same legal contention at issue in the original pleading].) Here, Plaintiff's original Complaint asserted ten causes of action for: (1) quiet title; (2) declaratory relief; (3) reformation of deed; (4) ouster; (5) partition; (6) breach of contract; (7) breach of implied covenant of good faith and fair dealing; (9) assault; and (10) intentional infliction of emotional distress ("IIED"). (ROA No. 2.)

		Defendants demurred to all ten causes of action. On 12/8/25, the Court sustained Defendant's demurrer, in part, with leave to amend the 1st, 2nd, 4th, 5th, and 10th causes of action ("December 8th Order"). (ROA No. 34.) The court sustained the demurrer to the 1st, 2nd, 4th and 5th causes of action because those claims were based on an oral agreement for an interest in real property in violation of the statute of frauds. (Ibid.) The court sustained the demurer to the 10th cause of action because Plaintiff failed to allege sufficient emotional distress. (Ibid.) On 12/23/25, Plaintiff filed the FAC alleging 12 causes of action for (1) quiet title; (2) fraud (fraudulent inducement); (3) cancellation of instruments; (4) declaratory relief; (5) unjust enrichment/constructive trust; (6) ouster; (7) partition of real property; (8) assault; (9) IIED; (10) conversion; (11) financial abuse of an elder; and (12) abuse of an elder. The 2nd, 3rd, 5th, 10th, 11th, and 12th causes of action are new and were not alleged in the original Complaint. Plaintiff contends the new labels and remedies are part of her effort to cure the defects identified by the Court and to plead newly developed facts. The Court agrees only as to the 2nd, 3rd, 5th causes of action fraud, cancellation of instrument and unjust enrichment/constructive trust. "[T]he general rule is that the holder of equitable title cannot maintain a quiet title action against the holder of legal title. But an exception exists when legal title has been acquired through fraud. In that case, available remedies include quieting title in the defrauded equitable title holder's name and making the legal title holder the constructive trustee of the property for the benefit of the defrauded equitable titleholder." (Liberty National Enterprises, L.P. v. Chicago Title Ins. Co. (2013) 217 Cal.App.4th 62, 81 [cleaned up].) Here, Plaintiff amended the quiet title action to allege she maintains equitable title and Defendant obtained legal title as a result of fraud, among other things. (FAC, ¶¶ 39, 41-46.) Therefore, the new causes of action for fraud, cancellation of instrument and unjust enrichment/constructive trust are within the scope of the October 8th Order. However, as to the 10th – 12th causes of action, Plaintiff did not ask for, and the Court did not grant, permission to add new causes

		of action for conversion, financial abuse of an elder and abuse of an elder. Those causes of action are not within the scope of the October 8th Order. (See Zakk v. Diesel (2019) 33 Cal.App.5th 431, 456 [holding that where the trial court granted leave to amend only to add a quantum meruit claim, plaintiff could not add a promissory estoppel cause of action without leave of court, even though plaintiff argued it addressed the statute of frauds defect and thus "directly responds to the Trial Court's concerns"].) **Tentative Ruling:** Defendant John Hakopian's Motion to Strike Portions of the First Amended Complaint is DENIED as to the 2nd, 3rd, and 5th causes of action and GRANTED as to the 10th, 11th and 12th causes of action. **2. Demurrer to Amended Complaint** Defendant demurs to the 1st -7th and 9-12th causes of action of the FAC. Because the Court granted Defendant's Motion to Strike the 10th, 11th, and 12th causes of action of the FAC, the demur to those causes of action is MOOT. *1st Cause of Action – Quiet Title* To plead a cause of action for quiet title, a plaintiff must allege: (1) a description of the property in question; (2) the basis for plaintiff's title; and (3) the adverse claims to plaintiff's title. (Cal. Code Civ. Proc., § 761.020.) "[T]he general rule is that the holder of equitable title cannot maintain a quiet title action against the holder of legal title. But an exception exists "when legal title has been acquired through fraud. In that case, available remedies include quieting title in the defrauded equitable title holder's name and making the legal title holder the constructive trustee of the property for the benefit of the defrauded equitable titleholder." (Liberty National Enterprises, L.P. v. Chicago Title Ins. Co. (2013) 217 Cal.App.4th 62, 81 [cleaned up].) Plaintiff no longer relies on an oral agreement as a basis for her title. Instead, Plaintiff bases her title on "a present equitable ownership and possessory interest in the Subject Property,

		including the right to occupy and possess the property during her lifetime" due to Defendant's acquisition of legal title through "fraud abuse of a confidential parent-child relationship, and unjust enrichment." (FAC, ¶¶ 39, 41-46.) Plaintiff's allegations of fraud by Defendant falls squarely within the exception. (See Liberty National Enterprises, L.P., supra, 217 Cal.App.4th at p. 81.) **Tentative Ruling:** The demurrer to the 1st cause of action is OVERRULED. *2nd Cause of Action – Fraud (Fraudulent Inducement)* The elements for fraud are "(a) misrepresentation (false representation, concealment or nondisclosure); (b) knowledge of falsity (or "scienter"); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) Fraud must be alleged with particularity. (Goldrich v. Natural Y Surgical Specialties, Inc. (1994) 25 Cal. App. 4th 772, 782.) Thus, the complaint must allege facts showing "how, when, where, to whom, and by what means'" the fraud was perpetrated. (Lazar, supra, 12 Cal.4th at p. 645.) Nevertheless, a general allegation that the representation was made with the intent to deceive the plaintiff is sufficient. (See Hall v. Mitchell (1922) 59 Cal.App. 743, 749 [although pleader need not adopt any particular phraseology, simple and direct averment that representation was made with intent to deceive would remove any uncertainty]; 5 Witkin, Cal. Proc. 6th Plead § 725 (2026).) Here, the FAC alleges Defendant made specific false representations to Plaintiff and Harry before and at the time title was placed in Defendant's name beginning about 1998 and lasting for about 26 years, including, inter alia, that: (1) title would be in Harry's, Plaintiff's, and Defendant's names; (2) Harry and Plaintiff would share ownership with Defendant; (3) Defendant would make a 20% down payment if Harry and Plaintiff gave him approximately $70,000; (4) Harry and Plaintiff could reside at the Subject Property for life; and (5) Defendant would care for them in old age. The FAC further alleges that Defendant did not intend to honor those representations when made, intended to assert exclusive ownership once title was secured, and induced Plaintiff and Harry to part with money and allow title to be structured in a way that

		left Defendant in control. (FAC, ¶¶ 10-14, 50-56.) At the pleading stage, these allegations are sufficient. **Tentative Ruling:** The demurrer to the 2nd cause of action is OVERRULED. *3rd Cause of Action – Cancellation of Instrument* When an otherwise valid deed does not truly express the intention of the parties, whether through fraud or mistake, the deed may be revised, reformed, or in some cases canceled. (Steiner v. Steiner (1958) 160 Cal.App.2d 665, 668-669.) Defendant demurs to the cancellation of instrument claim on the grounds that Plaintiff does not state a claim for fraud. Thus, because Plaintiff adequately alleges fraud, Plaintiff adequately alleges cancellation of instrument. Defendant also argues Plaintiff only alleges in a conclusory manner that she has a reasonable apprehension that if left outstanding, the deed would cause injury, without any facts and without any explanation. However, Plaintiff alleges Defendant has used the deeds and record title to exclude Plaintiff from her home, pursue eviction, prevent access to her belongings, list the Subject Property for sale, and threaten extinguishment of Plaintiff's equitable and possessory rights. (See FAC, e.g., ¶¶ 36, 67.) These allegations are sufficient to support Plaintiff's claim that she has a reasonable apprehension that if left outstanding, the deed would cause injury. **Tentative Ruling**: The demurrer to the 3rd cause of action is OVERRULED. *4th Cause of Action – Declaratory Relief* Defendant argues the fourth cause of action for declaratory relief is derivative of its quiet title should be dismissed if Plaintiff's quiet title claim does not survive demurrer. Thus, the quiet title cause of action survives demurrer. **Tentative Ruling**: The demurrer to the 4th cause of action is OVERRULED. *5th Cause of Action – Unjust Enrichment/Constructive Trust*

		Unjust enrichment and constructive trust are remedies, not causes of action. ((Habitat Trust for Wildlife, Inc v City of Rancho Cucamonga (2009) 175 Cal.App.4th 1306, 1332; accord, Farmers Ins Exchange v Zerin (1997) 53 Cal.App.4th 445, 457 [constructive trust]; (McBride v. Boughton ("McBride") (2004) 123 Cal.App.4th 369, 387 [unjust enrichment].) **Tentative Ruling**: The demurrer to the 5th cause of action is SUSTAINED with 10 days leave to amend. *6th and 7th Causes of Action – Ouster and Partition* Both causes of action require Plaintiff to have an interest in the property. (Civ. Code, §§ 843(a); 872.810.) Plaintiff has adequately alleged an equitable interest in the property to withstand demurrer. **Tentative Ruling**: The demurrer to the 6th and 7th causes of action is OVERRULED. *9th Cause of Action – IIED* "A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. A defendant's conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050 (cleaned up).) "With respect to the requirement that the plaintiff show severe emotional distress, this court has set a high bar. Severe emotional distress means emotional distress of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it." (Id. at 1051.) Plaintiff has alleged sufficient emotional distress. (FAC, ¶¶ 15-36, 129-137 **Tentative Ruling**: The Demurrer to the 9th cause of action is OVERRULED.

		Summary of Tentative Ruling: Motion to Strike: DENIED as to the 2nd, 3rd, 5th causes of action and GRANTED as to the 10th – 12th causes of action. Demurer: MOOT as to the 10th, 11th, and 12th causes of action, SUSTAINED with 10 days leave to amend as to the 5th cause of action, OVERRULED as to the remaining cause of action Defendant to give notice
3	**Cardenas vs. New Life Treatment Center, Inc.** **2025-01505645**	**Motion for Leave to File Cross Complaint** *Procedural issues* Defendants have not filed a proof of service showing the moving papers were served on Plaintiff. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As Plaintiff filed an opposition, Plaintiff does not appear to have been prejudiced by Defendants' failure to do so. In the future, the Court may decline to consider documents unaccompanied by the required proof of service. Moreover, Defendants' motion is single-spaced in violation of California Rules of Court, rule 2.108(1) which requires the lines on each page to be one and one-half spaced or double-spaced. The Court reminds counsel of Local Rule 700.5 for the Superior Court of Orange County, which states, "Attorneys and self represented parties must comply with all applicable statutes in addition to Local Rules and the California Rules of Court." *Likely use of generative artificial intelligence* The Court notes Defendants' motion includes quotations that are not found in the cases cited. For example, Silver Organizations, Ltd. v Frank (1990) 217 Cal.App.3d 94, 99 does not contain the quoted language cited by Defendants at page 5, line 9 and page 6, line 28, and page 8, line 18 of the motion. Additionally, Align Technology, Inc. v. Tran (2009) 179 Cal.App.4th 949, 958-959 does not contain the quoted language cited by Defendants at page 7, line 7. "[N]o brief, pleading, motion, or any other paper filed in any court should contain any citations—whether provided by generative AI or

		any other source—that the attorney responsible for submitting the pleading has not personally read and verified.” (Nolan v. Land of the Free, L.P. (2025) 114 Cal.App.5th 426, 431 [emphasis in original].) “[A]lthough there is nothing inherently wrong with an attorney appropriately using AI in a law practice—before filing any court document, an attorney must ‘carefully check every case citation, fact, and argument to make sure that they are correct and proper. Attorneys cannot delegate that role to AI, computers, robots, or any other form of technology. Just as a competent attorney would very carefully check the veracity and accuracy of all case citations in any pleading, motion, response, reply, or other paper prepared by a law clerk, intern, or other attorney before it is filed, the same holds true when attorneys utilize AI or any other form of technology.’” (Id. at p. 913 [citation omitted].) The Court ADMONISHES Defendants to carefully read and verify citations used in any future filings with the Court and that the failure to do so will result in the imposition of monetary sanctions and other appropriate corrective action with the State Bar. *Legal standard* If a defendant’s cause of action against plaintiff is related to the subject matter of the complaint, it is compulsory and must be raised by cross-complaint or the defendant will be barred from asserting it in any later lawsuit. (Code Civ. Proc., § 426.30) If the proposed cross-complaint is compulsory, leave must be granted so long as defendant is acting in good faith (Code Civ. Proc., § 426.50.) “A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall

		be liberally construed to avoid forfeiture of causes of action." (Code Civ. Proc., § 426.50.) "The legislative mandate is clear. A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith." (Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 98-99.) As such, courts "reject the view that the trial court may "exercise discretion" in the denial of a motion to file a compulsory cross-complaint under section 426.50." (Id. at p. 98.) *Analysis* Defendants seek leave to file a cross-complaint against Plaintiff to assert the following causes of action: (1) Fraud and Intentional Misrepresentation; (2) Negligent Misrepresentation; (3) Breach of Implied Covenant of Good Faith and Fair Dealing; (4) Abuse of Process; and (5) Declaratory Relief. Defendants' cross-complaint relates to the causes of action in Plaintiff's complaint and is therefore compulsory. (Code Civ. Proc., § 426.30.) Plaintiff alleges, for example, that after obtaining approval by her doctor to return to work after her maternity leave, Defendants "ignored Plaintiff and refused to accommodate Plaintiff." (Compl. ¶¶ 93-84.) The proposed cross-complaint alleges after Plaintiff returned to work after maternity leave, she "unilaterally and without authorization attempted to fundamentally change the terms and conditions of her employment," including that she would no longer work full-time as she had done prior to her leave and would work remotely rather than in-person. (Prop. Cross-Compl., ¶¶ 16-18.) As such, Defendants' motion must be granted so long as defendant is acting in good faith (Code Civ. Proc., § 426.50.)

		Counsel for Defendants submits a declaration stating that after Defendants filed their answer on 9/30/25, counsel conducted further investigation into the facts and circumstances of Plaintiff's employment with Defendants, including reviewing employment records, wage statements, communications between the parties, and witness statements. (Carey Decl., ¶ 5.) Based on this investigation and legal research, counsel determined Defendants have valid cross-claims against Plaintiff arising from the same employment relationship and the same factual circumstances alleged in Plaintiff's Complaint. (Carey Decl., ¶ 6.) Defendants then filed the instant motion on 1/27/26. Defendants further contend the proposed cross-complaint arises from the same operative facts as Plaintiff's complaint and that the case is still in its early stages with ongoing discovery and no trial date. (Carey Decl., ¶¶ 12, 14.) The Court does not find Defendants have acted in bad faith. To the extent Plaintiff contends the causes of action in Defendants' proposed cross-complaint are subject to California's Anti-SLAPP statute and/or demurrer, "a party that unsuccessfully opposes a motion for leave to file an amended complaint or cross-complaint has the right to demur to the new pleading after it is filed." (Talbott v. Ghadimi (2025) 109 Cal.App.5th 967, 976, fn. 7 [citations omitted].) **Tentative Ruling**: The Court GRANTS Defendants New Life Treatment Center, Inc. and Mary Malek's motion for leave to file a cross-complaint against Plaintiff Sheyda Morales Cadenas. Defendants are ORDERED to file the cross-complaint within ten (10) days
4	**Gunbilir vs. Ed's Detail Inc.** **2024-01387919**	**Motion for Leave to File Amended Complaint** Isganuhi Suna ("Suna"), Successor Trustee of the Kirkor Gunbilir Revocable Living Trust Dated March 4, 2019, seeks leave to amend the Complaint to be substituted as Plaintiff in place of Nerses Gunbilir, former Trustee of the Gunbilir Trust, and to attach the appropriate Lease Agreement as Exhibit "A".

		The court may, in the furtherance of justice, and on such terms as may be proper, allow amendment of a complaint at any time before or after commencement of trial. (Code Civ. Proc. §§ 473(a)(1), 576.) There is a general policy of great liberality in allowing amendment of pleadings at any stage of the litigation to allow cases to be decided on their merits. (Desny v. Wilder (1956) 46 Cal.2d 715, 751.) Further, under Code of Civil Procedure section 368.5, an action or proceeding does not stop by the transfer of an interest in the action. Section 368.5 allows the court to consent to a person to whom the transfer is made, to be substituted in the action in his/her place. Code of Civil Procedure section 375 provides "[a]n action or proceeding does not abate by the disability of a party. The court, on motion, shall allow the action or proceeding to be continued by or against the party's representative. Here, after Nerses returned to his homeland of Turkey, the Probate Court granted a Petition for an Order Regarding Construction of Trust Instrument and Confirming Appointment of Successor Trustee of the Gunbilir Trust ("Petition") on or about November 12, 2024. (Ozhekim Decl., ¶7, Ex. 3.) The Probate Court ruled that Suna was the Successor Trustee of the Gunbilir Trust. (Ibid.) Thus, Suna has satisfied the requirements of sections 368.5 and 375 to be substituted as the Plaintiff. In addition, Suna has established it is necessary to amend the Complaint to attach the correct Lease Agreement. The Lease Agreement currently attached as Exhibit A to the Complaint is a sublease for the Property rather than the actual lease with the Defendants. (Ozhekim Decl., ¶9, Ex. 2.) Defendants have not filed an opposition and therefore have not shown they will be prejudiced by the amendment. The motion complies with California Rules of Court, Rule 3.1324. In California, the general policy favors leave to amend. **Tentative Ruling:** The Motion for Leave to Amend the Complaint is GRANTED. Suna is ordered to file the First Amended Complaint within 10 days.

5	**Pacific Coast Builders, Inc. vs. Tuck** **2024-01420133**	**Motion for Attorney Fees** Defendants' counsel filed a Notice of Automatic Stay on 4/3/26 which states the case is stayed "with regard to all parties" due to Chapter 11 bankruptcy proceedings by Defendant/Cross-Complainant David Tuck. Moreover, Cross-Complainants' reply filed on 5/11/26 states the case is stayed. However, a bankruptcy stay generally applies only to actions against the debtor. (*In re Bidermann Industries U.S.A., Inc.* (Bankr. S.D.N.Y. 1996) 200 B.R. 779, 782; *Higgins v. Superior Court* (2017) 15 Cal.App.5th 973, 975 ["As a matter of law, the automatic stay that applied to claims against debtor Powell did not apply to Cabandong's claims against nondebtor Higgins"].) **Tentative Ruling:** Cross-Complainants' Motion for Attorney Fees is CONTINUED to 6/15/26. The parties shall each file a supplemental brief, not to exceed seven pages, no later than 6/1/26, addressing the following issues: 1). Does the bankruptcy stay apply to Plaintiff's action against Defendant Heather Tuck? 2). Does the stay apply to the Tucks' Cross-Complaint?
6	**Tsirtsis vs. Pacific Hospital Long Beach** **2024-01427440**	**Motion to Be Relieved as Counsel of Record** Moving attorney states withdrawal is necessary under Rules of Professional Conduct 1.16(b)(4)-(5), which provide for terminating representation on the following grounds: "(4) the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively; (5) the client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable* warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation;" **Tentative Ruling:** The motion of attorney Lawrence Hoodack to withdraw as attorney of record for Plaintiff James Dimitri Tsirtsis is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.

7	**Sozer vs. Yoshiharu Global Co.** **2024-01427440**	**Motion to Be Relieved as Counsel of Record** Moving attorney has not shown he has complied with the requirements of California Rules of Court, rule 3.1362. The proof of service filed on 2/25/26 reflects only proof of service on counsel for Plaintiff by electronic mail. (ROA 29.) It does not appear a proof of service on the client has been filed. **Tentative Ruling:** The motion of attorney Chanho C. Joo on behalf of himself and Law Offices of Chanho Joo to be relieved as counsel for defendant Yoshiharu Global Co. is CONTINUED to June 8, 2026 at 1:45 p.m., in this department. Mr. Joo is ordered to re-serve all moving papers along with a proof of service within five court days before the new hearing date. Moving attorney to give notice of new hearing date.
8	**Cavalli vs. Hanken** **2025-01513300**	**Motion to Be Relieved as Counsel of Record** This motion was continued because Avrek Law Firm failed to file the mandatory proposed Order. The Court ordered the law firm to file mandatory form MC-053 prior to the new hearing date and re-serve all moving papers, not just the missing form. (CRC 3.1362, subd. (d).) It appears the firm filed an entirely new motion which has been scheduled for 8/3/26. Therefore, this motion continued to 5/18/26 should be taken off calendar. **Tentative Ruling:** The motion of Avrek Law Firm to withdraw as attorney of record for Plaintiff Nazila Safavi is OFF CALENDAR. Avrek Law Firm filed a new motion which scheduled for 08/03/2026.
9	**Guillermo Salanueva vs. General Motors, LLC** **2022-01287084**	**Motion for Attorney Fees** Plaintiff Jose Luis Guillermo Salanueva's moves for Attorney's Fees, Costs, and Expenses. *Timeliness of Motion*: Defendant argues the Motion for attorneys' fees and costs is untimely.

		Although Defendant's opposition contends the attorneys' fees motion is untimely, Defendant fails to provide any argument or case law in support of its contention. Here, the case has not been dismissed, and no judgment has been entered. The Court's Minute Order dated 4/20/26 states "Counsel is to submit a request for dismissal after the motion hearing." (ROA 124.) Therefore, the Motion for fees is not untimely. (See Cal. Rules of Court, Rule 3.1702(b)(1), 8.104.) Defendant also argues that the Memorandum of Costs was not timely filed. Under California Rule of Court 3.1700(a)(1), a party "who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." Here, there has not been an entry of judgment or dismissal, but Defendant argues that under Madrigal v. Hyundai Motor Am. (2025) 17 Cal.5th 592 (Madrigal), the acceptance of a 998 offer to compromise acts as a judgment that starts the clock for filing a Memorandum of Costs. Madrigal states: "By its terms, section 998(b) points to a broad interpretation of the term 'judgment.' It provides that a valid, statutory settlement offer must 'allow judgment to be taken' (§ 998(b)) and states that '[i]f the offer is accepted, the offer with proof of acceptance shall be filed and the clerk or the judge shall enter judgment accordingly' (§ 998, subd. (b)(1), italics added). That formulation establishes that an accepted section 998 offer results in entry of a 'judgment' resulting from a settlement, not a trial." (Id. at p. 605.) Madrigal provides that the settlement agreement contemplates entry of judgment but does not hold that acceptance of a 998 offer without entry of judgment or dismissal starts the clock for filing a Memorandum of Costs. Therefore, the Memorandum of costs was not untimely. *Entitlement to Attorneys' Fees:* Plaintiff moves for attorneys' fees pursuant to Civil Code section 1794, subdivision (d) which states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on

actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

The parties entered into a Settlement Agreement and Release of all Claims, whereby Defendant agreed to pay Plaintiff $117,000. (Cohen Decl., ¶ 10, Ex. 2.) Under the terms of the Agreement, Defendant agreed to pay Plaintiff's attorneys' fees, costs, and expenses in an amount determined by the court. (Cohen Decl., ¶ 10, Ex. 2.) The Agreement also provides Plaintiff is the prevailing party. (Cohen Decl., ¶ 10, Ex. 2.)

Amount of Attorneys' Fees:

"[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (PLCM Group, Inc. v.

Drexler (2000) 22 Cal.4th 1084, 1095 (PLCM).) "The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (Ibid. (citation omitted).)

"As the plain wording of section 1794, subdivision (d) makes clear, the trial court is 'to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.' [Citation.] In the case of contingency fee arrangements, 'a prevailing buyer ... is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorneys.' [Citation.] [¶] Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then 'ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.' [Citation.] Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. [Citation.] The prevailing party and fee applicant bears 'the burden of showing that the fees incurred were ... "reasonably necessary to the conduct of the litigation," and were

		“reasonable in amount.” ’ [Citations.]” (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247 (Mikhaeilpoor).) Plaintiff seeks an award of attorneys’ fees pursuant to section 1794, subdivision (d) under the lodestar method in the amount of $40,224.50. Defendant does not challenge the hourly rate charged by Plaintiff but challenges Plaintiff’s fees as unreasonably excessive and seeks a reduction of $21,947.00. Defendant challenges the hours requested as follows: First, Defendant seeks a reduction in fees of $1,872 for 3.9 hours billed by Iraida Gonzalez on 5/8/23, 5/9/23, and 9/21/23 for its standard ESI letter, researching ESI, and drafting of Plaintiff’s templated written discovery. Defendant has shown Plaintiff used template forms; therefore, the requested hours are reduced by 2 hours and fees are reduced by $960 ($480 x 2 hrs.). Second, Defendant seeks a reduction of $2,280 for 5.7 hours billed on 4/11/23, 4/13/23, 4/20/23 and 5/2/23 by Gonzalez to draft Plaintiff’s discovery responses to Defendant’s discovery requests. Defendant has shown Plaintiff responded to Defendant’s written discovery with templated responses; the same responses Plaintiff’s counsel has served in other cases. Therefore, the requested hours are reduced by 2.8 hours, and the fees are reduced by $1,344 ($480 x 2.8 hrs.). Third, Defendant seeks a reduction of the $6,864 for 14.3 hours billed on 10/27/23, 10/30/23 and 10/31/23 by Gonzalez to review Defendant’s discovery responses. Defendant has shown Defendant’s responses to Plaintiff’s templated discovery requests are the same which counsel reviews in every case against Defendant. Therefore, the requested hours are reduced by 6 hours, and the fees are reduced by $2,880 ($480 x 6 hrs.). Fourth, Defendant seeks a reduction in the 4.7 hours billed on 3/27/24 and 3/28/24 for drafting an ex parte application and attending an ex parte application hearing. Defendant has shown counsel’s application was not novel and copies of other applications counsel has served on Defendant in other cases. Therefore, the

		requested hours are reduced by 2 hours, and the fees are reduced by $960 ($480 x 2 hrs.). Fifth, Defendant seeks a reduction in the 11.6 hours billed on 4/25/24, 4/26/24, 1/24/25, 1/27/25, 2/10/25, 2/11/25, 2/19/25, 4/18/25 and 4/21/25 in connection with Plaintiff's motion to compel Defendant's further responses to request for production. Defendant has shown the motion and reply are templates used by counsel in other cases against Defendant. Therefore, the hours requested are reduced by 3 hours for Marisa Mittelman ($425 x 3 hrs.) and 2 hours for Gonzalez ($480 x 2hrs.), and the fees are reduced by $2,235. Sixth, Defendant seeks a reduction in the 8.1 hours billed to draft subpoenas for third-party witnesses. Defendant has shown counsel regularly serves the same subpoenas in other cases against Defendant. Therefore, the hours are reduced by half, and the fees are reduced by $1,537.25. Seventh, Defendant seeks a reduction in the 2.2 hours billed to prepare the Memorandum of Costs. The hours billed are reasonable and the request to reduce the hours is denied. Eighth, Defendant seeks a reduction in the $2,800 for 6.4 hours Plaintiff anticipates for filing a reply to this Motion. The amount requested is excessive and reduced by 3 hours, and the fees reduced by $1,320 ($440 x 3 hrs.). Lastly, Defendant seeks a reduction in fees of $2,866.50 for 14.7 hours billed by paralegals Daisy Hernandez, Richard Ruiz, Robert Aguilar, Cesar Utuy, and Jennifer Romo (at $195 per hour) on the grounds the work was nonrecoverable clerical work. Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (Missouri v. Jenkins (1989) 491 U.S. 274, 288, fn. 10.) Calendaring, preparing proofs of service, internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus noncompensable or compensable at a reduced billing rate. (Save Our Uniquely Rural Community Environment v. County of San Bernardino (2015) 235 Cal.App.4th 1179, 1187.) Defendant does not specify the dates of the challenged billing entries. Given the numerous billing entries for Daisy Hernandez,

		Richard Ruiz, Robert Aguilar, Cesar Utuy, and Jennifer Romo, it is not practical for the court to determine what billing entries are challenged by Defendant. Therefore, the request to reduce the fees for the paralegals is denied. Based on the foregoing, the court reduces attorneys' fees by $11,236.25. **Tentative Ruling:** The Court GRANTS Plaintiff attorneys' fees of $28,988.25. *Costs* Plaintiff filed a memorandum of costs, claiming $1,903.90 in costs, on 12/12/25. (ROA 115.) To challenge a memorandum of costs, the responding party must file and serve a motion to strike or to tax costs "15 days after service of the cost memorandum." (Cal. R. Ct. Rule 3.1700(b)(1).) Defendant did not file a motion to strike or tax costs. **Tentative Ruling**: Costs are awarded in the amount of $1,903.90. Moving party to give notice.
10	**Herrlinger vs. Gulton Court LP** **2025-01523864**	**Motion for Order for Service on Secretary of State** Plaintiff Erin Herrlinger moves for an order pursuant to Corporations Code section 1702 permitting Plaintiff to effectuate service of process on defendant Gulton Court LP by serving the office of the California Secretary of State. Corporations Code section 1702, subdivision (a) provides, "If an agent for the purpose of service of process has resigned and has not been replaced or if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20 or subdivision (a) of Section 415.30 of the Code of Civil Procedure or upon the corporation in the manner provided in subdivision (a), (b) or (c) of Section 416.10 or subdivision (a) of

Section 416.20 of the Code of Civil Procedure, the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service. Service in this manner is deemed

complete on the 10th day after delivery of the process to the Secretary of State.” (Corp. Code, § 1702, subd. (a) [emphasis added].)

Plaintiff has submitted a declaration of counsel, Michael J. Cefali in support of the Motion. Cefali states that the California Secretary of State lists Dominique M. Morel as the agent for service of process for defendant Gulton Court LP and lists the principal and mailing address as 17511 Rainglen Lane, Huntington Beach, CA 92649. (Cefali Decl., ¶¶ 2-3.) On November 20, 2025, a registered process server from DDS Legal Support attempted service at that address but the attempt was unsuccessful, and the server was informed by an adult male that the agent and business were unknown at that address. (Cefali Decl., 4-5, Ex. A.) On November 25, 2025, counsel again accessed the Secretary of State Business Search to confirm the agent and address information, however, no changes had been made. (Cefali Decl., ¶ 6.) No alternative addresses for Defendant or its agent exist in Secretary of State records or public records databases. (Cefali Decl., ¶ 7.)

Based on the foregoing, Plaintiff has demonstrated that process against defendant Gulton Court LP cannot be served with reasonable diligence.

Tentative Ruling: Plaintiff Erin Herrlinger motion for an order pursuant to Corporations Code section 1702 permitting Plaintiff to effectuate service of process on defendant Gulton Court LP by serving the office of the California Secretary of State is GRANTED.

Plaintiff to give notice.

11	**Belflora Maintenance Corporation vs. DeQuardo** **2024-01385267**	**Motion for Order to Show Cause re: Contempt Against Defendant** Plaintiff Belflora Maintenance Corporation's moves for an order directing Defendant, Lianna Dequardo, to show cause why Defendant should not be held in contempt of this Court for Defendant's willful disobedience of a Court Order awarding sanctions to Plaintiff, which was entered by this Court on October 16, 2025. Contempt, which occurs outside the presence of the court is considered an indirect contempt. (Hanson v. Superior Court (2001) 91 Cal.App.4th 75, 81.) "When the contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit shall be presented to the court or judge of the facts constituting the contempt. . ." (Code Civ. Proc. § 1211, subd. (a).) "[T]he affidavit by which a contempt proceeding is instituted, in order to sufficiently support an adjudication of contempt, must state facts constituting the offense, otherwise the court is without jurisdiction, and the facts essential to establish jurisdiction are (1) the making of the order, (2) knowledge of the order, (3) ability of the respondent to render compliance, and (4) willful disobedience of the order." (People v. Superior Ct. for Los Angeles Cnty. (1965) 239 Cal.App.2d 99, 104.) "The affidavit is in effect a complaint, frames the issues before the court and is a jurisdictional prerequisite to the court's power to punish." (Koshak v. Malek (2011) 200 Cal.App.4th 1540, 1549.) A "…declaration…given under penalty of perjury… is a satisfactory substitute for an affidavit." (In re Morelli (1970) 11 Cal.App.3d 819, 830.) Plaintiff moves on the grounds Defendant has failed to comply with the Court's Order awarding Plaintiff monetary sanctions ("Sanctions Order") following a hearing on Plaintiff's Motion to Compel Discovery Responses, including Requests for Production of Documents, Form Interrogatories, and a Motion to have Requests for Admission deemed admitted. (Mahar Decl., ¶ 5, Ex. A.) The Sanctions Order required Defendant to pay Plaintiff $4,955.55 within ninety (90) days of Notice of the Order. (Mahar Decl., ¶ 5, Ex. A.) The Notice of Sanctions Order was served on Defendant's counsel by email on October 17, 2025. (Mahar Decl. ¶6, Ex, C.) Plaintiff sent Defendant a meet and confer letter on January 16,

		2023, and demanded payment by January 23, 2026. (Mahar Decl. ¶7, Ex. B.) To date, Defendant has failed to pay the sanctions award. (Mahar Decl., ¶ 8.) As to Defendant's willful disobedience of the Sanctions Order, Plaintiff contends Defendant willfully disobeyed the Sanctions Order by failing to pay the amount required, even following a courtesy reminder by Plaintiff. Willful disobedience is not limited to a deliberate intention to disregard a court order, but it also encompasses "an indifferent disregard of the duty to obey [a court order] promptly." (In re Karpf (1970) 10 Cal.App.3d 355, 372 [citation and internal quotations omitted].) A disclaimer of the intent to commit contempt is no defense where contempt clearly appears from the circumstances constituting the act. (City of Vernon v. Superior Court (1952) 38 Cal.2d 509, 518). Thus, where a defendant had knowledge of the terms of an injunction and failed to comply, "it can be reasonably inferred that his/her inaction was intentional..." (Ibid.) **Tentative Ruling**:. Plaintiff Belflora Maintenance Corporation's motion for an order directing Defendant, Lianna Dequardo, to show cause why Defendant should not be held in contempt of this Court for Defendant's willful disobedience of a Court Order awarding sanctions to Plaintiff, which was entered by this Court on October 16, 2025, is GRANTED. **Defendant Lianna Dequardo is hereby ORDERED to appear in person before the court on 06/23/2026 at 9:00 am in Department C15** to show cause as to why she should not be held in contempt of court for her failure to obey the provisions of the Court Order dated October 16, 2025. As part of the proceedings, Defendant shall be afforded the right to examine witnesses for or against her. Notice of the Order to Show Cause, along with the affidavits in support of Plaintiff's Motion, shall be personally served upon Defendant. (Cedars-Sinai Imaging Medical Group v. Superior Court (2000) 83 Cal.App.4th 1281, 1287 fn. 6 [" 'Personal service of the order to show cause on the party charged is a jurisdictional basis of a contempt order.' "].) Proof of service shall be filed at least 5 court days prior to the hearing on the Order to Show Cause. Moving party shall give notice.

12	**Truong vs. Batalla** **2023-01300672**	**Motion for Terminating Sanctions** Defendant's motion was served on Plaintiff via email on 1/29/26. However, Plaintiff's counsel withdrew from this matter effective 9/18/24 and Plaintiff apparently remains unrepresented by counsel in this case. Therefore, Defendant is required to serve the motion on Plaintiff via non-electronic means, such as mail or personal service. California Rules of Court, Rule 2.251(c)(3)(B) provides that self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." Similarly, Code of Civil Procedure section 1010.6 subdivisions (b)(1) and (f)(2) provide that unrepresented persons are exempt from mandatory electronic filing and service. Here, there is no indication Plaintiff has affirmatively consented to electronic service. Therefore, unless Defendant obtains Plaintiff's consent to electronic service, Defendant must serve the motion on Plaintiff by non-electronic means within the statutory notice period before the new hearing date. **Tentative Ruling:** Defendant Luis Batalla's Motion for Terminating Sanctions is CONTINUED to 6/22/26 at 1:45 p.m. in this Department.
13	**Alliance Funding Group vs. ELT Transportation LLC** **2024-01411660**	**Claim of Exemption - Wage Garnishment** Before the Court is the continued hearing on a claim of exemption of wages presented by judgment debtor Teona Petrosian (Debtor) and the opposition to claim of exemption filed by judgment creditor Alliance Funding Group (Creditor). The Court finds Debtor timely complied with the requirements to claim an exemption of levied funds, and Creditor timely complied with the requirements to oppose the claim of exemption. (Code of Civ. Proc. §§ 703.520, 703.550.)

		The claimant bears the burden of proof at the hearing on the exemption claim. (Code of Civ. Proc. § 703.580, subd. (b); O'Brien v. AMBS Diagnostics, LLC (2016) 246 Cal.App.4th 942, 948.) However, the exemption statutes are liberally construed in favor of the claimant. (Independent Bank v. Heller (1969) 275 Cal.App.2d 84, 88.) Debtor seeks a claim of exemption because her earnings are below the minimum amount for earnings withholding order. Creditor argues the Debtor's claim of exemption is not supported by evidence establishing Debtor's disposable earnings fall below the statutory threshold set forth in Code of Civil Procedure section 706.050; Debtor merely states that she receives commissions and currently has no earnings. Creditor also argues that Debtor is compensated through commissions does not establish that her earnings are exempt from garnishment. Debtor filed a declaration in response wherein she attests that she is employed by EXP Northern California on a "l099" subcontractor basis as a realtor since 11/6/25. (Petrosian Decl., ¶ 2.) Debtor does not assert commission income is not wages. (Id., ¶ 3.) Rather, she explains that she does not know if she will earn a commission until escrow closes. (Ibid.) She states she had zero income from 11/6/25 through 2/23/26, the date she prepared her claim of exemption. (Id., ¶ 3.) She did not provide documentation because she had none to provide. (Ibid.) Since she filed the claim of exemption, she had one sale close and earned $10,940.00. (Id., ¶4.) She did not learn of the closing and receive the commission until after she prepared the claim of exemption. (Ibid.) Presently, she does not have any pending closings. (Id., ¶ 5.) She also asserts the residential real estate market is very poor at present. (Ibid.) Debtor asserts that her income is below the minimum, even taking her single sales commission into account, and estimates her income as follows: "I am informed and believe the minimum wage for §706.050 is $16.90 per hour. I have now worked for EXP Northern California for more than 4 full months, plus approximately 3 weeks. Multiplication of $26.90 by 208 to obtain the monthly amount produces $3,515.20 per month as the threshold for §706.050.

		Multiplication by 4 months produces $14,060.80 per 4 months as the threshold. My actual income over 4+ months is $10,940.00, which is below the $14,060.80 threshold for 4 months. “At the time of the April 6, 2026 hearing, my duration of employment with EXP Northern California will be exactly 5 months. While I anticipate essentially zero change of any additional income between today's date and the April 6, 2026 hearing date, I will update the Court regarding this at hearing, for use in comparison with the threshold for 5 months, of ($16.90 * 208) * 5 = $17,576.00.” (Id., ¶¶ 6, 7.) Debtor filed a second declaration as ordered by the Court on 4/13/26, with evidence establishing her start date of 11/6/26. (2nd Petrosian Decl., ¶ 2, Ex. 1 [Independent Contractor Agreement, effective 11/6/26].) Debtor also provided documentation establishing she earned two commissions from 11/6/25 – 5/8/26, one of $9,495.00 and the other of $13,140.50, for a total of $22,635.50. (Id., ¶ 3, Ex. 2.) She also attests that because she is an independent contractor, the these payment figures are gross receipts. She is responsible to withhold/pay her own taxes as well as other expenses from her gross revenues. She states a conservative estimate of taxes, even without accounting for my expenses, is 25%. (Id., ¶ 4, Ex. 1.) Debtor has established her earnings fall below the statutory threshold set forth in Code of Civil Procedure section 706.050. The Court therefore finds Debtor’s wages, which are earned through commissions, are exempt in whole. **Tentative Ruling:** The claim of exemption is GRANTED.

14	**Temple Hills Land Company, LLC vs. Floraville, LLC** **2023-01360506**	**1. Motion for Summary Judgment and/or Adjudication** **2. Motion for Summary Judgment and/or Adjudication** **3. Motion for Summary Judgment and/or Adjudication** There are 3 motions for summary judgment pending before the Court, seeking adjudication of the same issues with the same evidence and arguments presented for each. Additionally, there are numerous objections submitted as to evidence in support of the Motions. All objections shall be addressed here. Temple Hills's objection to Boss's Declaration generally and to paragraphs 6-18 are overruled. Boss has demonstrated some special skill or knowledge through his own testimony in his declaration. Boss's declaration demonstrates he has sufficient skill and knowledge regarding title and title searches. Boss's declaration provides each deed or document relied upon by each paragraph. (Boss Decl., ¶¶ 7-18.) An expert may provide expert opinion on the ultimate issue "which the court may or may not accept." (Wells Truckways v. Cebrian (1954) 122 Cal.App.2d 666, 674.) Additionally, an expert may rely on otherwise inadmissible evidence to form an opinion. Thus, Temple Hills's objections to Boss's declaration are overruled. Temple Hills's objections to the tax records are not dispositive to the case and, thus, the Court declines to rule on them. Floraville's objections to Exhibits 14 A-h are overruled. To the extent any of the exhibits are not referenced in the separate statements, the Court exercises its discretion to consider the evidence. (San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A. (2002) 102 Cal.App.4th 308, 315.) Documents received through discovery can be authenticated by an attorney declaration if there is sufficient evidence to support the declaration. Counsel has provided sufficient evidence the exhibits produced are the copies of the documents provided in response to a business records subpoena. (Gleason Decl., ¶ 8.) Finally, the records are excepted from the hearsay rule as records kept in the normal course of business because they are the records normally kept in regards to a city council appeal. Floraville's remaining objections to the declarations of Schroeder, Gleason, Dornin, and Cantrell and the remaining requests for

		judicial notice are not dispositive to the motions and, thus, the Court declines to rule on them. Temple Hills's requests for judicial notice of recorded deeds and conveyances are granted. The Court declines to admit records related to the city council appeal because they are more appropriately admitted through Gleason's declaration as documents obtained through discovery. ***Floraville's MSJ - Complaint*** Floraville first claims a prior judgment entered pursuant to a settlement between Gregg Juarez, the prior owner of the Temple Hills property, and David and Ellen Edington, the prior owners of the Floraville property, extinguished all easement rights of the Temple Hills property as the dominant estate. In opposition, Temple Hills argues the Juarez judgment only addressed a separate easement. In reply, Floraville argues the judgment gave the Edingtons fee title to the Disputed Area including the at issue easement. However, the judgment provides "the Edingtons own fee title to the following real property, free of any right, title or interest of Juarez: [¶] That portion of that certain easement for road purposes … in Book 3231, Page 227 …." (Floraville, Ex. 23.) The judgment also provides it "does not affect any and all ownership and easement rights Juarez has to any other real property …." (Floraville, Ex. 23.) Floraville only offers a declaration from its expert, Boss. Boss does not explain how the judgment could be construed to concern real property beyond that which it is clearly limited to in the plain language of the judgment. Further, Floraville provides no evidence the property in Book 3231, Page 227 and the property at issue in Book 3235, Page 43 are the same property. Therefore, summary adjudication is denied on this ground. "A servitude is extinguished: [¶] 1. By the vesting of the right to the servitude and the right to the servient tenement in the same person …." (Civil Code, § 811.) Floraville has satisfied its burden of showing the Lowrie Properties had a unity of title of the Floraville property and APN 641-163-09. (Exs. 24-26 and 28.) Thus, the easement as to APN 641-163-09 was extinguished by merger when Lowrie Properties obtained unity of title of the two properties in 1956. Therefore, the burden shifts to

		Temple Hills to prove there is an issue of material fact as to whether the easement was extinguished. Temple Hills has demonstrated an issue of material fact as to whether the grant deed from Lowrie to Wanda Kress meant to include the previously recorded easements. The grant deed from Laguna Oceanview Estates to Lowrie provides for the easement at issue in Parcel 5. (Ex. 26.) The grant deed to Kress provides it is "[s]ubject to covenants, conditions, reservations, restrictions and rights of way of record." (Ex. 27.) It is unclear if this line means to include what would be an extinguished easement. Therefore, summary adjudication is denied on this ground. Finally, Floraville argues it adversely possessed the easement by maintaining a fence, gate, and landscaping coupled with nonuse by the easement holder. Floraville has not demonstrated it's use interfered with the use of the easement or an appearance of permanency. Floraville has not demonstrated for the purposes of summary adjudication that the settlement in Juarez included the at issue easement or Floraville's use by law interfered with the easement holder's use. In seeking an appeal of a denial for a variance to keep the fence, Floraville stated the fence served as a safety feature to hikers because of the steep edge on the current access road. (TX, 6D.) Additionally, Floraville had an agreement with the Water District which it also extended to the city to remove the fence if there was "a problem for any reason." (TX, 6D.) Thus, it is not beyond dispute whether Floraville intended its use of fencing and landscaping to exclude use by the easement holder for the purposes of summary adjudication. Therefore, summary adjudication should be denied on this ground. Floraville has failed to demonstrate it is entitled to summary adjudication as to either claim that Temple Hills is precluded by law as to its quiet title cause of action of the at issue easement or the declaratory relief cause of action. **Tentative Ruling**: Defendant/Cross-Complainant Floraville, LLC's Motion for Summary Judgment on the Complaint, or in the alternative, summary adjudication is DENIED. ***Floraville's MSJ – Cross-Complaint***

		Floraville's own quiet title and declaratory relief causes of action fail for the same reasons as stated above. Floraville cannot establish for the purposes of summary judgment that there is no dispute of material fact that the easement was extinguished by a prior judgment, merger, or adverse possession. **Tentative Ruling**: Defendant/Cross-Complainant Floraville, LLC's Motion for Summary Judgment on the Cross-Complaint, or in the alternative, summary adjudication is DENIED. ***Temple Hill's MSJ - Complaint*** In order to prevail on its Motion, Temple Hills must prove there is no dispute of material fact as to its easement not being extinguished by a prior judgment, merger, or adverse possession. However, Temple Hills has failed to satisfy its initial burden of demonstrating there is no dispute as to whether Floraville adversely possessed the area including the easement. There is a dispute of material fact as to whether Floraville's or its predecessor's use of the property interfered with Temple Hills or its predecessor's use of the easement or whether the use had an appearance of permanency. Thus, Temple Hills has not demonstrated it is entitled to prevail on its claims to quiet title to the easement or have the easement declared as valid. Accordingly, summary adjudication is not proper as to either of its causes of action. **Tentative Ruling:** Plaintiff/Cross-Defendant Temple Hills Land Company, LLC's Motion for Summary Judgment on the Complaint, or in the alternative, summary adjudication is DENIED. Moving parties to give notice.
15	**Peoples vs. Park Anaheim Healthcare, LLC** **2023-01364852**	**Motion for Summary Judgment and/or Adjudication** *O/C Notice of Settlement filed 04/30/26*

16	**Randall vs. Morena** **2021-01193717**	**Motion for Order to Stay Proceedings** The Court sets this matter for oral arguments at 1:45 PM. Parties may appear remotely.